

25CHCV03910 25CHCV03910

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Case Number: 25CHCV03910 Hearing Date: July 15, 2026 Dept: F49

Dept. F49

Date: 7/15/26

Case Name: Hilda Andriassian; Serra Gokce vs. Woodman

VII Homeowners Association

Case No. 25CHCV03910

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 15, 2026

DEMURRER

Los Angeles Superior

Court Case No. 25CHCV03910

Motion filed: 4/1/26

MOVING PARTY: Plaintiffs Hilda Andriassian and Serra

Gokce

RESPONDING PARTY: Defendant Woodman VII Homeowners

Association

NOTICE: OK

RELIEF REQUESTED: An order from this Court sustaining Plaintiffs' Demurrer to Defendant's Amended Answer.

TENTATIVE RULING: The Demurrer is OVERRULED IN PART and SUSTAINED IN PART, with leave to amend.

BACKGROUND

This action arises out of the alleged failures of Defendant Woodman VII Homeowners Association ("Defendant") to properly repair Plaintiffs' condominium unit after water intrusion from the roof caused mold growth. On November 4, 2025, Plaintiffs Hilda Andriassian and Serra Gokce (collectively, "Plaintiffs") filed the Complaint against Defendant, alleging the following causes of action: (1) breach of the governing documents, (2) negligence, (3) nuisance, (4) trespass, (5) breach of fiduciary duty, and (6) declaratory relief.

On March 18, 2026, Defendant filed the operative Amended Answer.

On April 1, 2026, Plaintiffs filed the instant Demurrer to the Amended Answer (the "Demurrer"). On July 1, 2026, Defendant filed an Opposition. On July 8, 2026, Plaintiffs filed a Reply.

ANALYSIS

"A party against whom an answer has been filed may object, by demurrer ... to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain." (Code Civ. Proc., § 430.20.) The term "uncertain" includes an answer that is ambiguous or unintelligible. (Id., § 430.20, subd. (b).) The grounds for demurrer must appear on the face of the answer or from any matter of which the court must take judicial notice. (§ 430.30, subd. (a).)

"The answer to a

complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b).)

"The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as new matter. Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter." (State Farm Mutual Automobile Insurance Co. v. Super. Ct. (1991) 228 Cal.App.3d 721, 725.)

A properly drafted pleading alleges the "ultimate facts which constitute the cause of action or defense thereto." (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 382.) An answer accordingly must allege facts constituting an affirmative defense in the same manner as a complaint must do for a cause of action. (Id., at p. 384.) "[A]ffirmative defenses cannot be pled as mere legal conclusions but must instead be alleged with as much factual detail as the allegations of a complaint." (In re Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 813.)

Where a demurrer is sustained, it is generally an abuse of discretion to deny leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

A.

Meet and Confer Requirement

Before filing a demurrer, "the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

Plaintiffs'

counsel has filed a declaration indicating that she met and conferred with Defendant's counsel by telephone at least five days before the date a responsive pleading was due. (CIV-140, Broberg Decl., ¶ 2a.) The Court finds that this satisfies the meet and confer requirement of Code of Civil Procedure section 430.41, subdivision (a).

B.

Grounds for Demurrer

Plaintiffs demur to the first, third through twelfth, and fourteenth through twenty-ninth affirmative defenses asserted in the Amended Answer on the grounds that they do not state facts sufficient to constitute a defense and they are uncertain. Plaintiffs contend that the foregoing affirmative defenses are insufficiently pled because they do not state any new matter, improperly assert contract-based defenses that are inapplicable to the tort claims at issue, and do not provide particularized facts in support. (Dem., at p. 14.)

(1)

Uncertainty

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292 [citing Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3].)

Courts typically disfavor demurrers

based on uncertainty, which the court strictly construes even when the pleading is uncertain in some respects. (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.) Here, Plaintiffs fail to identify any allegations that are ambiguous or unintelligible. Upon review, the Amended Answer, although unclear in some respects, clearly identifies each affirmative defense to which Plaintiffs must respond and the facts generally supporting each. The Court accordingly finds that the Amended Answer does not fail for uncertainty.

(2)

Defendant’s Affirmative Defenses

(a)

Denials

The third affirmative defense of the Amended Answer alleges that “plaintiffs failed to properly maintain their property” and “dismissed the remediation company hired to address” their reported issues, stating that damages should be apportioned accordingly. (Am. Answer, ¶ 3.) The fourth affirmative defense re-alleges these facts in support of the assertion that Plaintiffs’ recovery should be reduced in proportion to their failure to mitigate damages. (Id., ¶ 4.) The seventh affirmative defense alleges that Defendant did not proximately cause Plaintiffs’ injuries. (Id., ¶ 7.) The twenty-third, twenty-fourth, and twenty-sixth affirmative defenses allege that Plaintiffs suffered no irreparable harm, that Defendant did not breach the duty of care, and that Defendant, in fact, had no duty to Plaintiffs to exercise reasonable care. (Id., ¶¶ 23, 24, 26.)

Plaintiffs argue that Defendant’s third, fourth, seventh, twenty-third, twenty-fourth, and twenty-sixth defenses are denials rather than affirmative defenses, suggesting that they are improperly pled because they do not plead additional facts beyond those alleged by Plaintiffs. (Dem., at pp. 16-17.) Code of Civil Procedure section 431.30, however, expressly allows an answer to include general and specific denials of the material allegations of the complaint. (Code Civ. Proc., § 431.30, subd. (a).) Insofar as Plaintiffs take issue with the fact that the allegations are labelled as “affirmative defenses,” the Court does not find this irregularity to be sufficient grounds to sustain a demurrer.

The Demurrer is accordingly **OVERRULED** as to the third, fourth, seventh, twenty-third, twenty-fourth, and twenty-sixth affirmative defenses.

(b)

Contract-Based Defenses

Plaintiffs contend that Defendant’s eleventh, fifteenth, sixteenth, seventeenth, eighteenth, and twentieth affirmative defenses are irrelevant to the action because they are contract-based defenses. (Dem., at p. 17.) Plaintiffs assert that their claim that Defendant violated the relevant Covenants, Conditions and Restrictions (“CC&Rs”) is a claim based on equitable servitudes rather than a contract.

(Ibid.)

Pursuant to Civil Code section

5975, subdivision (a), the covenants and restrictions in the declaration of a development's governing document "shall be enforceable equitable servitudes, unless unreasonable," by any owner of a separate interest or by the association. In confirming the "reasonableness" standard applicable to equitable servitudes, the Court of Appeal in *Nahrstedt v. Lakeside Village Condominium Association* explained that a servitude is enforceable unless "it violates a public policy, it bears no rational relationship to the protection, preservation, operation or purpose of the affected land, or its harmful effects on land use are otherwise so disproportionate to its benefits to affected homeowners that it should not be enforced." (*Nahrstedt*, 8 Cal.4th 361, at pp. 385-386.)

Defendant does not provide any

authority for the assertion of the following defenses against enforcement of an equitable servitude: accord and satisfaction (eleventh affirmative defense), justification (fifteenth affirmative defense), ratification (sixteenth affirmative defense), Plaintiffs' material breach (seventeenth affirmative defense), discharge (eighteenth affirmative defense), and acceptance of benefits (twentieth affirmative defense).

The Court is accordingly persuaded

by Plaintiffs' reasoning that the foregoing defenses do not apply in the instant circumstances. Insofar as the foregoing defenses attempt to assert that relevant CC&Rs are unreasonable, they fail to identify any particular provision claimed to be so or state any facts supporting unreasonableness under the circumstances.

The Demurrer is accordingly

SUSTAINED as to the eleventh, fifteenth through eighteenth, and twentieth affirmative defenses.

(c)

Specific Pleading Requirements

Plaintiffs argue that Defendant's

ninth, twelfth, nineteenth, and twenty-eighth affirmative defenses all fail to plead facts sufficient to constitute a defense. The ninth affirmative defense alleges that Plaintiffs are estopped from recovery "by reason of the

allegations set forth in their Complaint.” (Am. Answer, ¶ 9.) Specifically, Defendant alleges that Plaintiffs intentionally failed to properly maintain their own property and refused repairs. (Ibid.)

The twelfth and nineteenth affirmative defenses are waiver and unclean hands, respectively. Defendant alleges that Plaintiffs’ conduct constituted waiver of any breach of duty and bars them from relief, specifically by their intentional failure to properly maintain their property and refusal of repairs. (Am. Answer, ¶¶ 12, 19.)

The twenty-eighth affirmative defense is laches. Defendant alleges that Plaintiffs unreasonably delayed filing their lawsuit after discovering the water intrusion into their property, which occurred three years prior. (Am. Answer, ¶ 28.)

A defendant asserting an equitable defense must set forth the circumstances giving rise to the defense. (E.g., *Mission Housing Development Co. v. City and County of San Francisco* (1997) 59 Cal.App.4th 55, 75 [estoppel]; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 141 [waiver].)

To adequately plead estoppel, a defendant must allege: (1) Plaintiffs were apprised of the facts; (2) Plaintiffs intended that their conduct be acted upon, or acted such that Defendant had a right to believe their reliance was intended; (3) Defendant was ignorant of the true state of facts, and (4) Defendant relied upon Plaintiffs’ conduct to its injury. (*Sofanek v. County of Merced* (2007) 146 Cal.App.4th 1238, 1250.) Here, Defendant’s bare allegations of Plaintiffs’ failure to properly maintain their units and refusal of repair are inadequate to state intent, reliance, or injury. The Demurrer is accordingly SUSTAINED as to the ninth cause of action of the Amended Answer.

Waiver generally means voluntary relinquishment of a known right, and can mean the loss of a right from a party’s failure to perform a required act, regardless of intent. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 315.) Although Defendant has alleged that Plaintiffs failed to perform their own obligations, Defendant does not adequately allege that this failure resulted in a loss of any homeowners right, including repair. The Demurrer is SUSTAINED as to the twelfth cause of action of the Amended Answer.

Unclean hands involves bad faith, inequitable, or unconscionable conduct by Plaintiffs that would result in inequity if Plaintiffs were afforded relief. (*Fladeboe v. American Isuzu Motors Inc.* (2007) 150 Cal.App.4th 42, 56.) “Any conduct that violates conscience, or good faith, or other equitable standards of conduct is sufficient cause to invoke the doctrine.” (*Aguayo v. Amaro* (2013) 213 Cal.App.4th 1102, 1110.) Here, Plaintiffs seek to recover for Defendant’s failure to properly repair their unit. The Amended Answer alleges that Plaintiffs themselves refused repair and failed to adequately maintain their unit. (Am. Answer, ¶ 19.) The Court finds that the allegation that Plaintiffs forestalled the very repair they now claim Defendant failed to perform adequately states what a trier of fact may find constitutes inequitable conduct. The Demurrer is accordingly **OVERRULED** as to the nineteenth affirmative defense.

To plead laches, Defendant must allege: (1) Plaintiffs failed to assert a right, (2) the failure caused unreasonable delay, and (3) the delay resulted in prejudice to Defendant. (In re Marriage of Powers (1990) 218 Cal.App.3d 626, 642.) Here, Defendant’s allegations sufficiently allege Plaintiffs’ failure to assert a right (initiating this action against Defendant), unreasonable delay caused by the failure (three years’ delay), and prejudice to Defendant (destruction of evidence and unavailability of witnesses). (Am. Answer, ¶ 28.) The Court finds these allegations adequate to state the defense of laches. The Demurrer is **OVERRULED** as to the twenty-eighth affirmative defense.

(d)

“Boilerplate” Defenses

Plaintiffs generally contend that Defendant’s remaining defenses are boilerplate legal conclusions devoid of any facts supporting the defenses. (Dem., at pp. 14-15.) Defendant asserts that the defenses are supported by the facts alleged in the Amended Answer and Complaint. (Opp’n, at p. 3.) The Court agrees that some of the defenses alleged are unsupported by any factual allegations.

Defendant’s first affirmative defense alleges comparative negligence. (Am. Answer, ¶ 1.) The allegations state that Plaintiffs had a duty to act in a reasonably prudent manner and breached the duty by failing to maintain their property and interfering with

the repair process, resulting in their alleged damages. (Ibid.) These allegations sufficiently state a defense of comparative negligence. The Demurrer is **OVERRULED** as to the first affirmative defense.

The fifth affirmative defense

alleges that Plaintiffs' damages were the result of an intervening and superseding action on the part of another party, and the fourteenth affirmative defense alleges that Plaintiffs' damages were caused by the wrongful acts of third parties. (Am. Answer, ¶ 5, 14.) Defendant, however, does not identify any other individuals or entities alleged to have caused Plaintiffs' injuries or what conduct would supersede the conduct alleged in the Complaint. The Court **SUSTAINS** the Demurrer as to the fifth and fourteenth affirmative defenses.

The sixth affirmative defense

asserts privilege, but fails to identify which privilege applies or allege the circumstances giving rise to the privilege. (Am. Answer, ¶ 6.) The Demurrer is accordingly **SUSTAINED** as to the sixth affirmative defense.

The eighth affirmative defense

alleges that Defendant acted in good faith by promptly retaining the services of remediation and roofing companies to address the purported issues with the property. (Am. Answer, ¶ 8.) The Court agrees with Plaintiffs that this statement is conclusory and fails to state the circumstances underlying the assertion of good faith, such as how long after the defect was reported the remediation company was retained, what investigation was conducted, and what scope of work was authorized. The Court accordingly finds this defense insufficiently pled. The Demurrer is **SUSTAINED** as to the eighth affirmative defense.

The tenth affirmative defense

alleges that Plaintiffs consented to the inadequacy of the repairs alleged in the Complaint by allowing completion of roofing repairs in June 2025. (Am. Answer, ¶ 10.) The Court agrees that permitting repairs to be performed does not infer consent to leaks and otherwise inadequate performance of services. (See Dem., at p. 15.) This defense is inadequately pled. The Court accordingly **SUSTAINS** the Demurrer as to the tenth affirmative defense of the Amended Answer.

The twenty-first affirmative

defense alleges that Plaintiffs' claims are barred by Defendant's exercise of

reasonable discretion. (Am. Answer, ¶ 21.) Defendant alleges that it acted in good faith by promptly retaining the services of remediation and roofing companies to address the issues with the property. (Ibid.) The Amended Answer, however, fails to identify the source and scope of Defendant's discretion or any facts constituting the reasonable exercise thereof. This defense is accordingly insufficient as pled. The Court SUSTAINS the Demurrer to the twenty-first affirmative defense.

The twenty-second affirmative defense alleges that Plaintiffs' claims are barred by the business judgment rule, stating that Defendant relied on the opinions and expertise of contractors in determining the appropriate course of action with respect to the issues with the property. (Am. Answer, ¶ 22.) The business judgment rule applies where the board of a corporation acts in good faith within the scope of its discretionary power in refusing to take action. (*Beehan v. Lido Isle Community Assn.* (1977) 70 Cal.App.3d 858, 865.) It does not apply to actions taken without reasonable inquiry, with improper motives, or as a result of a conflict of interest. (*Kruss v. Booth* (2010) 185 Cal.App.4th 699, 728.) Here, while Defendant alleges that it acted in good faith by relying on the expertise of others, it does not plead facts sufficient to support that it made a reasonable inquiry into the purported issues with the property. This defense is thus inadequate as alleged. The Court SUSTAINS the Demurrer as to the twenty-second affirmative defense.

The twenty-fifth affirmative defense alleges that Plaintiffs failed to comply with any relevant statute, ordinance, or regulation governing their claims, barring their recovery. (Am. Answer, ¶ 25.) Defendant fails to identify what statute Plaintiffs violated or what conduct constitutes the alleged violation. The Court accordingly SUSTAINS the Demurrer as to the twenty-fifth affirmative defense.

The twenty-seventh affirmative defense alleges that Plaintiffs are precluded by Civil Code section 4955 and Corporations Code section 7141 from challenging decisions made by the homeowners association at a board meeting. (Am. Answer, ¶ 27.) The Amended Answer alleges that "Plaintiffs may be attempting to challenge decisions regarding repair responsibility made" before January 2024. (Ibid.) Pursuant to Civil Code section 4955, subdivision (a), an association member may bring a cause of action for a violation of the association "within one year of the date the cause of action accrues." The Complaint does not specifically challenge any

board meeting decision. This is accordingly new matter that does not respond to the essential allegations of the Complaint, but fails to identify what board decision is subject to the defense. The defense is thus insufficiently pled. The Demurrer is SUSTAINED as to the twenty-seventh affirmative defense.

Finally, the twenty-ninth affirmative defense reserves Defendant's right to assert additional defenses. (Am. Answer, ¶ 29.) The Court agrees with Plaintiffs that a reservation of additional defenses is neither a denial nor an affirmative defense and is accordingly not authorized by Code of Civil Procedure section 431.30. The Demurrer is SUSTAINED as to the twenty-ninth affirmative defense.

The Demurrer is thus OVERRULED IN PART and SUSTAINED IN PART.

CONCLUSION

The Court OVERRULES IN PART and SUSTAINS IN PART Plaintiffs' Demurrer to Defendant's Amended Answer. The Demurrer is SUSTAINED as to the fifth, sixth, eighth through twelfth, fourteenth through eighteenth, twentieth through twenty-second, twenty-fifth, twenty-seventh, and twenty-ninth affirmative defenses. The Demurrer is OVERRULED as to the first, third, fourth, seventh, nineteenth, twenty-third, twenty-fourth, twenty-sixth, and twenty-eighth affirmative defenses.

Defendant is granted leave to amend. Defendant may file a second amended answer within 20 days.

Moving party to give notice.